



Eli Lilly – Merida Biosciences

MN-80042

Phase 1 Determination

Acquisition may be put into effect

1 October 2026

1. Determination and statement of reasons

Notified acquisition	Eli Lilly and Company (Eli Lilly) proposes to acquire 100% of the issued shares in Merida Biosciences, Inc. (Merida Biosciences) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Eli Lilly, is a US-based pharmaceutical company which discovers, develops, manufactures and markets human pharmaceutical products for various therapeutic areas, including diabetes, oncology, immunology and neuroscience. Eli Lilly is headquartered in Indianapolis, the US and is publicly listed on the New York Stock Exchange. The target, Merida Biosciences, is a clinical-stage biotechnology company focused on developing treatments for certain autoimmune and allergic conditions. It was founded in 2022 and is headquartered in Massachusetts, the US. Merida Biosciences' is developing the following treatments: • MER511, a clinical-stage (Phase 1) thyroid-stimulating hormone receptor autoantibody degrader for the treatment of Graves' disease and thyroid eye disease (TED). • MER769, a therapeutic antibody designed to neutralise and eliminate immunoglobulin E (IgE) antibodies for the treatment of IgE-mediated allergic diseases. • MER683, which degrades autoantibodies for the treatment of primary membranous nephropathy, a chronic inflammatory kidney disease.
Overlap between the Parties	There are no existing horizontal overlaps between Eli Lilly and Merida Biosciences in Australia
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition would be unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC

	makes the following findings. • There is no horizontal overlap between Eli Lilly and Merida Biosciences in Australia.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**